

Sri Tapas Kanti Ghosh vs Sumita Ghosh on 12 September, 2014

Author: Sanjib Banerjee

Bench: Sanjib Banerjee

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Sl. 1718
12.09.2014

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S.d.

C. O. No.1189 of 2013
With
CAN 1969 of 2014

Sri Tapas Kanti Ghosh
-versus-
Sumita Ghosh

Mr. Mahendra Prasad Gupta
Mr. Sanjib Das
Mr. Kingshuk Mondal

..for the petitioner.

Sufficient grounds have been made out as to why the petitioner was not represented on January 7, 2014 when CO No. 1189 of 2013 was dismissed for default.

The order dated January 7, 2014 is recalled and CO No. 1189 of 2013 is restored to the file.

The restoration application, CAN 1969 of 2014, is allowed as above.

CO 1189 of 2013 is taken up for immediate hearing. The grievance of the petitioner is that despite the opposite party wife having an independent source of income, the trial court has allowed an application under Section 24 of the Hindu Marriage Act, 1955 by directing Rs.3000/- to be paid per month for the maintenance of the child. The petitioner says that the trial court failed to take into account the fact that the wife had substantial income. The petitioner also asserts that the trial court ignored the petitioner's assertion that the petitioner, as a typist in a criminal court, had a monthly

income of Rs.1500/-.

The order impugned is well-reasoned and gives cogent grounds in support thereof. The trial court took into account the fact that the wife had sufficient income to sustain herself and did not allow any amount on account of alimony pendente lite. The trial court allowed only a sum of Rs.3000/- per month towards the maintenance of the child. There was no evidence of the husband's income which was presented before the trial court. In the circumstances, the trial court was justified in disbelieving the utterly false statement of the husband that he had an income of Rs.1500/- per month as a typist. Indeed, if the husband's income was so low, the husband may have applied under any guaranteed employment scheme which would fetch the husband a similar amount or more every week.

There is no basis to the husband's grievance and there is no illegality or material irregularity in the order impugned passed by the trial court.

CO No. 1189 of 2013 is dismissed with costs assessed at Rs.1000/- to be deposited with the West Bengal State Legal Services Authority within a fortnight from date.

There will be no order as to costs.

Urgent certified website copies of this order, if applied for, be made available to the parties upon compliance of the requisite formalities.

(Sanjib Banerjee, J.)